

Jute Manufacturers Cess Act, 1983

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Jute Manufacturers Cess Act, 1983

UNION OF INDIA

India

Jute Manufacturers Cess Act, 1983

Act 28 of 1983

Published on 7 September 1983

Commenced on 7 September 1983

[This is the version of this document from 1 January 2002.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

The Jute Manufactures Cess (Amendment) Act, 2002 (Act 13 of 2002)

on

1 January 2002

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Jute Manufacturers Cess Act, 1983

NO. 28 of 1983

1273.

Object and Reasons This Bill is complementary to the Jute Manufactures Concil Bill, 1983. The Jute Manufactures Development Council Bill, 983, seeks to provide for the development of production of jute manufactures by increasing the efficiency and productivity in the jute industry, financing of activities for such development and for matters connected

therewith. For this purpose, the Bill seeks to provide for the establishment of a Council to be called the Jute Manufactures Development Council. In order to ensure that the said Council has the necessary resources to perform its functions, this Bill seeks to provide for the levy, by way of cess, of a duty of excise on every article of jute manufacture produced in India and specified in the Schedule to the Bill at the rates specified therein. The intention is to make over, after due appropriation by Parliament by law, the proceeds of the cess to the Jute Manufactures Development Council to enable it to perform its functions effectively.

[7th September, 1983.]

An Act to provide for the levy and collection, by way of cess, of a duty of excise on jute manufactures for the purpose of carrying out measures for the development of production of jute manufactures and for matters connected therewith.

BE it enacted by Parliament in the Thirty-fourth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.-

(1)

This Act may be called the Jute Manufactures Cess Act, 1983.

(2)

It extends to the whole of India.

(3)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

1-5-1984, Vide Notification No.326(E), dated 28-3-1984 Gazette of India, Extraordinary, Part II, Section 3(ii)

2.

Definitions.-

In this Act, unless the context otherwise requires, -

(a)

"jute manufacture" means any article specified in the Schedule which contains more than fifty per cent. of the jute (including Bimlipatam jute or mesta fibre of any sort) by weight of the total fibre content and in the production of which any process is ordinarily carried on with the aid of power.

Explanation.- "Power" means electrical energy or any other form of energy which is mechanically transmitted and is not generated by any human or animal agency;

(b)

"prescribed" means prescribed by rules made under this Act;

(c)

"producer" in relation to a jute manufacture, means the producer of such jute manufacture.

3.

Levy and collection of cess on jute manufactures produced in India.-

(1)

There shall be levied and collected by way of cess for the purposes of the Jute Manufactures Development Council Act, 1983, on every article of jute manufacture specified in column 2 of the Schedule and produced in India, a duty of excise at such rate not exceeding the rate specified in the corresponding entry in column 3 thereof, as the Central Government may, by notification in the Official Gazette, specify:

Provided that until such rate is specified by the Central Government, the duty of excise shall be levied and collected at the rate specified in the corresponding entry in column 4 of the Schedule.

(2)

The duty of excise levied under sub-section (1) shall be in addition to the duty of excise leviable on jute manufactures under the Central Excises and salt Act, 1944(1 of 1944) or any other law for the time being in force.

(3)

The duty of excise levied under sub-section (1) shall be payable by the Producer of a jute manufacture.

(4)

The provisions of the Central Excises and Salt Act, 1944(1 of 1944), and the rules made thereunder, including those relating to refunds and exemptions from duty, shall, so far as may be, apply in relation to the levy and collection of the duty of excise on jute manufactures under this Act.

4.

Crediting proceeds of duties to the Consolidated Fund of India.-

The proceeds of the duty of excise levied under sub-section (1) of section 3 shall first be credited to the Consolidated Fund of India and the Central Government may, if Parliament, by appropriation made by law in this behalf, so provides, pay to the Jute Manufactures Development Council, from time to time, from out of such proceeds (after deducting the cost of collection which shall not exceed four per cent. of such proceeds) such sums of money as it may think fit being utilised for the purposes of the Jute Manufactures Development Council Act, 1983.

5.

Power to call for information.-

The Central Government may require a producer of a jute manufacture to furnish for the purposes of this Act, such statistical and any other information in such form and within such period as may be prescribed.

6.

Power to make rules.-

(1)

The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for the form in which and the period within which statistical and other information may be furnished under section 5.

(3)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

[THE SCHEDULE]

[Schedule Substituted by Act 13 of 2002]

[See sections 2(a) and 3(1)]

Sl. No.

Article of jute manufacture

The max rate at which duty of excise may be collected

Actual rate at which duty of excise is to be collected until different rate is to be specified by the Central Government.

1.

Carpet Backing

Rs. 195 per tonne

Rs. 65.00 per tonne

2.

Hessian

Rs. 209 per tonne

Rs. 69.65 per tonne

3.

Sacking

Rs. 158 per tonne

Rs. 52.65 per tonne

4.

Yarn and Twine

Rs. 197 per tonne

Rs. 65.65 per tonne

5.

D.W. Tarpaulin

Rs. 198 per tonne

Rs. 66.00 per tonne

6.

Decorative Fabrics

Rs. 457 per tonne

Rs. 152.35 per tonne

7.

Cotton Bagging

Rs. 110 per tonne

Rs. 36.65 per tonne

8.

Soil saver

Rs. 115 per tonne

Rs. 38.35 per tonne

9.

Japanese Rice Bags

Rs. 205 per tonne

Rs. 68.35 per tonne

10.

Any other article of Jute manufacture

Rs. 184 per tonne

Rs. 61.35 per tonne

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